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CONFIDENTIAL MATERIALS EXCLUDED

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BEFORE THE
FEDERAL MARITIME COMMISSION

FMC DOCKET NO. 24-13

ACCESS ONE TRANSPORT, INC.
Complainant,

v.

COSCO SHIPPING LINES CO. LTD.
Respondent.

**COMPLAINANT’S REPLY TO RESPONDENT’S
RESPONSES TO ACCESS ONE TRANSPORT INC.’S
PROPOSED FINDINGS OF FACT¹**

Comes now, Complainant, Access One Transport, Inc. (hereinafter “Access”, “AOT” or “Claimant”) and hereby submits its reply to Respondent, COSCO Shipping Lines Co. Ltd.’s (“COSCO” or “Respondent”) responses to Complainant’s Proposed Findings of Fact. Access’ Proposed Findings of Fact are reproduced followed by COSCO’s responses reproduced verbatim in **BOLD**. COSCO’s responses are followed by Access’ reply thereto in underlined italics typeface. Where facts were deemed admitted, no further reply was needed.

¹ Confidential references are in **RED BOLD TYPE**. The public version of this document will redact the confidential references.

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CF 1. At all times relevant, COSCO was and is an ocean carrier aka VOCC; Answer to Complaint, pg. 3, Claimant's Appendix (pages in Claimant's Appendix hereinafter referred to as "CX") CX0004.

RESPONSE: Admitted.

CF 2. At all times relevant, Access was and is a motor carrier; Declaration of Nobuyuki "Nobu" Suzuki, (Dec. of Suzuki") ¶ 1, CX01442.

RESPONSE: Admitted.

CF 3. From on or about July 2021 through October 2022 (the "Relevant Time Period"), Access, in its ordinary course of business, pulled full containers from COSCO designated terminals in the Ports of Los Angeles and Long Beach for delivery to Access and COSCO customers and to return empty containers to COSCO designated terminals; Declaration of Kahana Ogawa ("Dec. of Ogawa") ¶ 3, CX01451; Access Claim Summary, columns H – N, CX01430-01435.

RESPONSE: Admitted.

CF 4. Access' and COSCO's customers would fall into the definition of "Merchant" under the terms and conditions of COSCO's bills of lading; Dec. of Suzuki, ¶2, CX01442; COSCO Bill of Lading terms, CX00155.

RESPONSE: Admitted.

CF 5. After the consignees had unloaded the cargo in the COSCO containers, Access in the regular

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course would attempt to return the empty containers to COSCO within the free time allowed; Dec. of Suzuki, ¶3, CX01442.

RESPONSE: Denied that Access regularly “attempt[ed] to return containers to COSCO within the free time allowed.” Evidence introduced by AOT demonstrates that it never attempted to return containers on weekend days, either during the free time allotted or afterwards. See RPFF61-62.

Access Reply: The Dec. of Thompson indicates Access consulted the COSCO terminal broadcast and attempted to obtain appointments on at least a daily basis, See Dec. of Thompson, ¶¶ 7-9, CX01447, Supplemental Dec. of Thompson, ¶¶2-4, CX 01478-CX01480; Dec. of Suzuki, ¶15, CX01443 (“Access had dedicated employees who were responsible to attempt to secure appointments throughout the day”). As to any argument that Access should have attempted a return of an empty container at any time before the end of free time is not material as a motor carrier is not obligated to return a container before the expiration of free time. To require an earlier return date, would make free time illusory. COSCO’s RPFF61-62 do not support the denial of this fact in the first instance as neither fact concerns the return of containers during free time in any specificity. RPFF61 complains that Access did not complain of lack of appointments on weekends, but as shown in response thereof, the “tickets” referenced to do differentiate between weekday or weekend lack of appointments. Fact RPFF62 is patently false. As indicated in the response thereto, COSCO’s instruction was for one specific weekend, February 12-13, 2022 (CX01397) not a continuing notice that illusory appointments were available on weekends, which Access already sought out on a routine basis. At the time the email was sent to Access, On the date the email was sent, February 10, 2022, Access found no appointments were available. See CX01396. Nevertheless, Access, per its ordinary procedure continued to seek appointments on a

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daily basis and was able to return 17 containers on weekend days February 13, 2022, February 19-20, 2022 and February 26, 2022, see Access Claim Summary CX1430-CX1435, column N. COSCO provides no evidence whatsoever that appointments were available for the return of COSCO's empties on any weekend date on which Access possession of empty containers. Instead, COSCO, by its actions, has admitted that locations and appointments were not available for the return of empties, CF41, 43, 44 and 69.

CF 6. Access provider motor carrier drayage services on behalf of COSCO in conjunction with the consignee ("Carrier Haulage") and on behalf of consignees/cargo owners directly ("Merchant Haulage"); Dec. of Suzuki, ¶¶4 and 5, CX01442.

RESPONSE: Respondent lacks information sufficient to admit or deny. Respondent objects to Complainant's citation to the declaration of Nobuyuki Suzuki, which was not produced to Respondent during the discovery period.

Access Reply: As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.") In response to the objection to the declaration of Suzuki, Access was not obligated to produce the declaration during discovery as it did not exist. Access is entitled to use declarations in support of its brief. Mr., Suzuki was listed a witness for Access it is initial disclosures, see CX01462. COSCO decided for its own reasons to not take Mr. Suzuki's deposition prior to the discovery cut off at its peril, see also 46 C.F.R. §§502.202 and 502.204.

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CF 7. For Carrier Haulage, a motor carrier is nominated by the consignee and engaged by COSCO to deliver the full container to the consignee and return the empty at the expense of COSCO; Dec. of Suzuki, ¶4, CX01442.

RESPONSE: Respondent lacks information sufficient to admit or deny. Respondent objects to Complainant's citation to the declaration of Nobuyuki Suzuki, which was not produced to Respondent during the discovery period. Respondent further objects to Complainant's language with respect to Access One being "engaged by COSCO," as no evidence has been introduced regarding Access One being engaged by consignee as a customer-nominated trucker ("CNT") under Carrier Haulage. See CX00312-CX00313.

Access Reply: As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.")). In response to the objection to the declaration of Suzuki, Access was not obligated to produce the declaration during discovery as it did not exist. Access is entitled to use declarations in support of its brief. Mr., Suzuki was listed a witness for Access it is initial disclosures, see CX1462. COSCO decided for its own reasons to not take Mr. Suzuki's deposition prior to the discovery cut off at its peril, see also 46 C.F.R. §§502.202 and 502.204. Mr. Suzuki, stated in his declaration that all shipments in the Access Claim Summary where Tireco was listed as the customer, were Carrier Haulage and COSCO owed Access for Carrier Haulage services, Dec. of Suzuki, ¶¶4 & 9, CX01442.

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CF 8. Merchant Haulage concerns services by a motor carrier retained by the consignee or cargo owner and is directed to pull the full container and return the empty at the expense of the merchant; Dec. of Suzuki, ¶5, CX01442.

RESPONSE: Admitted.

CF 9. For Merchant Haulage or Carrier Haulage, COSCO would designate the available terminals in the Ports of Los Angeles or Long Beach for return of empty containers but on occasion no terminal was available for empty returns; Dec. of Suzuki, ¶6, CX01442; Declaration of William Thompson (“Dec. of Thompson”) ¶2, CX01446-01447; see general eModal information and emails, CX01311-CX01418.

RESPONSE: Admitted that COSCO would designate available terminals in the Ports of Los Angeles/Long Beach for return of empty containers. Denied that “on occasion no terminal was available for empty returns.” On occasion, AOT may have been unable to secure an appointment at the terminal to return the empty containers; however, that does not mean “no terminal was available for empty returns.”

On February 10, 2022, in response to an email from AOT’s Nobu Suzuki, COSCO’s Phillip Taylor instructed, “There will be no issue securing empty return appointments during Friday night, or Saturday/Sunday day shifts. *Please plan to take advantage of the weekend offering.*” RPFF47. However, AOT has introduced no evidence showing that it ever attempted to return containers on the weekends, per COSCO’s suggestion. RPFFs 61-62.

Access Reply: First, COSCO has now admitted for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68. The Dec. of Thompson indicates Access consulted the COSCO terminal

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broadcast and attempted to obtain appointments on at least a daily basis, See Dec. of Thompson, ¶¶ 7-9, CX01447, Supplemental Dec. of Thompson, ¶¶2-4, CX 01478-CX01480; Dec. of Suzuki, ¶15, CX01443 (“Access had dedicated employees who were responsible to attempt to secure appointments throughout the day”). COSCO’s RPFF61-62 do not support the denial of this fact. RPFF61 asserts that Access did not complain of lack of appointments on weekends, but as shown in response thereof, the “tickets” referenced do not differentiate between weekday or weekend lack of appointments. Fact RPFF62 is patently false, as indicated in the response thereto. COSCO’s suggestion in the email referenced in RPFF47 was for one specific weekend, February 12-13, 2022 (CX01397) not a continuing notice that illusory appointments were available on weekends, which Access already sought out on a routine basis. On the date the email was sent, February 10, 2022, COSCO admits, Access found no appointments were available see RPFF 48. See also CX01396. Nevertheless, Access, per its ordinary procedure continued to seek appointments on a daily basis and was able to return 17 containers on weekend days February 13, 2022, February 19-20, 2022 and February 26, 2022, see Access Claim Summary CX1430-CX1435, column N. COSCO provides no evidence whatsoever that appointments were available for the return of COSCO’s empties on any weekend date on which Access had possession of empty containers. Instead, COSCO, by its actions, has admitted that locations and appointments were not available for the return of empties regardless of the day of the week, CF41, 43, 44 and 69.

CF 10. When COSCO designated terminal availability, Access found that either the terminals did not have any appointments available for return of the empty containers or were requiring “dual” transactions in order to return an empty container thus prohibited the return of the empty container in a timely fashion, Dec. of Thompson, ¶3, CX01447; Access Terminal Availability Summary,

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CX1436-CX01439; Blue Cargo screen shots, CX01092-CX01302; eModal information and emails, CX01311-CX01418.

RESPONSE: Denied to the extent that Complainant suggests that COSCO directed the marine terminal operator's decision to require a trucker to both return of an empty container and pick up a loaded container, otherwise known as a one-for-one swap, dual transaction, or dual move. Ocean carriers such as COSCO have no say in the terminal's decision to require dual moves.

Moreover, Blue Cargo does not receive its information directly from any marine terminal and is not sanctioned by any marine terminal. In other proceedings, the Presiding Officer has recognized that "Blue Cargo's data is sometimes inaccurate." *Hapag-Lloyd A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c)*, FMC Dkt. 21-09 (I.D. April 22, 2022). Respondent objects to Blue Cargo screen shots as irrelevant and unreliable. Terminals in the LA/LB area release (i.e., make available) appointments either daily (PCT, LBCT) to 1.5 weeks to 2 weeks in advance (Fenix) ["FMS"]. Prudent drayage providers, therefore, plan their dispatches accordingly, as appointments are taken up quickly. If AOT did not timely attempt to make appointments, the Blue Cargo screenshots showing the lack of available appointments on a certain day as of that morning do not identify whether adequate appointments were ever available. In addition to the terminals advising the trucking community as to gate appointment availability and dual move requirements, COSCO also sends daily email to the trucking community regarding empty return locations and terminals' dual move requirements.

Access Reply: First, COSCO has now admitted for all cancelled invoices and their related billed dates, Access "was able to demonstrate container return appointment unavailability" see COSCO

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Response to CF 68. COSCO's denial is not on point. It is not material if COSCO chose not to "direct" terminals as to the methods of receiving COSCO's empty containers. COSCO admits it has the obligation to have adequate facilities for its operations including the return of empty containers see COSCO Response to CF115. COSCO, by its admission, chose to comply with this obligation by contracting with terminals for the service. COSCO cannot now avoid liability by blaming lack of ability to accept empty container on its terminals.

COSCO's objections to the Blue Cargo screen shots should be overruled. The Presiding Officer in Hapag-Lloyd A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c), FMC Dkt. 21-09 (I.D. April 22, 2022). did not independently establish any unreliability of Blue Cargo screenshots; instead it accepted as fact, the unopposed proposed fact that Blue Cargo information is sometimes inaccurate. Id. initial decision at pg.15. The Presiding Officer did not exclude Blue Cargo evidence, indeed Respondent Hapag-Lloyd also used Blue Cargo evidence in support of its defense, Id. initial decision at pg.15. Contrary to COSCO's assertions the Presiding Officer also found that the Blue Cargo data is taken directly from marine terminal websites Id., initial decision at 15. In the instant case, COSCO as part of their proposed facts has stated "Blue Cargo is a third-party platform that collects information about vessel schedules, weekly terminal gate schedules, and container status, and provides notifications to subscribers" RPF27. COSCO has provided no contra evidence to rebut the veracity of the Blue Cargo information (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). Its objection should be overruled and reliance on Blue Cargo information should be allowed

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COSCO's emails to the trucking community do not state if any appointments are available, they only designate which terminals COSCO has designated for empty returns, attempt to show if they are "open" or "closed" or if other restrictions apply such as dual transactions see generally CCX01311-CX01418. Thereafter COSCO admits it is up to the motor carrier to verify that information and also determine if appointments are available for returns even if a terminal shows "open", RPPF29-30.

Further COSCO has offered no evidence that any terminal provides appointments 1.5 to two weeks in the future. Even if that were the case, there would be no ability for a motor carrier to take advantage of any such appointments without any certainty since COSCO's eModal broadcasts only provide terminal information for up to three days after its publication, see generally eModal information CX01311-CX01347, see also COSCO response to CF 20.

CF 11. A dual transaction requires the motor carrier to pick up a full container at the same time it dropped off an empty container. If a motor carrier does not have a corresponding full pick up at the terminal it may not drop off the empty. Dec. of Thompson, ¶4, CX01447; COSCO First set of Discovery Responses, response to interrogatory no. 1, CX00097.

RESPONSE: Denied to the extent that Complainant suggests that such "dual transactions" were imposed by COSCO. Instead, it was not COSCO but the port terminals who required these dual transactions. Otherwise admitted.

Access Reply: COSCO admits the substance of the proposed fact. COSCO's superfluous qualification to its response should be disregarded in the first instance and also COSCO admits its obligation to provide adequate facilities for the return of empty containers, (COSCO response to CF 115) thus any dual requirement remains COSCO's responsibility even if implemented by its

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designated terminals.

CF 12. Access and COSCO are parties to the Uniform Intermodal Interchange and Facilities Access Agreement (“UIIA”). COSCO participates in the UIIA through COSCO Shipping North America, Inc., aka COSCO America (“COSCO NA”); Dec. of Suzuki, ¶7, CX01442; Answer pg. 3-5 CX00004-CX000006.

RESPONSE: Admitted that Access One identifies itself as a party to the UIIA. Admitted that COSCO NA is a party to the UIIA.

Access Reply; COSCO has admitted it is a party to the UIIA without limitation, RPFF10.

CF 13. Under the UIIA addendum applicable to COSCO, COSCO allows four business days free time to return empty containers after full loads are pulled from COSCO’s terminals; Answer pg.5 CX00006; UIIA addendum, CX00151.

RESPONSE: Denied with respect to the phrase “COSCO’s terminals,” as the terminals are not controlled by COSCO. Admitted that COSCO through COSCO NA allows four business days’ free time to return empty containers under the UIIA Addendum. CX00151.

Access Reply; COSCO is apparently objecting to Access characterization of “COSCO Terminals”. COSCO has not denied it is responsible for having adequate facilities for its operations and uses non-owned terminals in LALB for its operations (COSCO response to CF 115). Since COSCO chooses to use non-owned terminals it is responsible to ensure their actions on behalf of COSCO do not violate the Act. Otherwise, the fact is admitted.

CF 14. Thereafter, per the COSCO addendum to the UIIA, COSCO charges various rates per day

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detentions for each day the empty container is not returned to COSCO beyond the free time allowed depending on the size and configuration of the empty container; Answer pg. 5, XC00006; UIIA addendum, CX000152-CX00153.

RESPONSE: Admitted.

CF 15. COSCO's tariff has similar free time available for containers pulled under Merchant Haulage but allows 8 working days free time for containers pulled under Carrier Haulage; COSCO First set of Discovery Responses, response to interrogatory no. 8, CX00099; COSCO's Rules Tariff CX00451-CX00454.

RESPONSE: Admitted.

CF 16. The UIIA addendum and COSCO's Rules Tariff both provide that free time days do not include Saturdays, Sundays and Holidays, without defining which "holidays" are observed UIIA addendum or tariff; CX00151; COSCO's Rules Tariff CX000451-CX00454.

RESPONSE: Denied. The UIIA Addendum defines "Holidays" as "those that are enumerated in labor contracts at the point of interchange." CX00151.

Reply: Access concedes the UIIA does include the aforementioned definition of Holidays; However COSCO's tariff does not. COSCO did not deny any representation regarding its tariff and is thus deemed admitted. (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.").

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CF 17. COSCO, during discovery has refused to provide further clarity of the use of “holiday” in the UIIA; COSCO First set of Discovery Responses, response to interrogatory no. 4, CX00098.

RESPONSE: Denied. Respondent denies that “holiday” necessitates a specific definition beyond those holidays enumerated in labor contracts at the point of interchange.

Access Reply: Access stands by its proposed fact. COSCO does not deny it did not provide any further clarification or definition of Holiday. (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”).

CF 18. In addition to the UIIA and its tariff, COSCO has further agreements directly with shippers, consignees, beneficial cargo owners or other parties which extend the amount of free time allowed or that may change the amount of detention charged on a daily basis; Answer pp. 5-6, CX00006-CX00007; Dec. of Suzuki, ¶8, CX01442; COSCO’s Rules Tariff, CX00455.

RESPONSE: Admitted to the extent that COSCO may sometimes negotiate the duration of free time as a term in its confidential service contracts with its shipper customers, which are filed with the Federal Maritime Commission as required by the Shipping Act. Denied that such agreements permit COSCO to “change the amount of detention charged on a daily basis.”

Access Response: As to COSCO’s partial denial, that detention rates may not be provided for in service contracts COSCO had not provided any authority for this position. Otherwise, the fact is admitted.

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CF 19. Access benefits from such agreements in terms of free time allowed, especially for Carrier Haulage; Answer pp. 5-6; CX00006-CX00007; Dec. of Suzuki, ¶8, CX02441; COSCO's Rules Tariff, CX00455.

RESPONSE: Respondent lacks information sufficient to admit or deny, as COSCO does not enter into service contracts subject to the Shipping Act with drayage truckers generally or with Access One specifically. The contractual relationship between COSCO and Access One is governed by the UIIA. To the extent that Access One acts as agent of an entity entitled to free time above tariff limits as specified in a service contract filed with the FMC, such free time would consequently extend to Access One as that entity's agent.

Access Reply: Access does not contend that it is a party to service contracts filed under the Shipping Act. However, as COSCO admits to the extent COSCO has longer free time in the service contracts with consignees than what is available under its tariff or the UIIA, Access is entitled to the additional free time Answer pp. 5-6; CX00006-CX00007.

CF 20. COSCO would designate locations for empty terminals via eModal through email information from COSCO's Long Beach Customer Service Center; COSCO First set of Discovery Responses, responses to request for production nos. 1 and 15, CX00082-CX000083; CX00097; CX01311-CX01418.

RESPONSE: Denied that "COSCO would designate locations for empty terminals." Admitted that COSCO sends daily instructions with respect to empty container return locations and that these instructions are transmitted by eModal emails., which include a chart listing the LA/LB terminals vis-à-vis the following three days' worth of appointment availability for both day and night time slots. See, e.g., CX01312-01313. The eModal emails

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further explain, “For Single empty in transactions, the appts are opened at 11:00am on a daily basis for the next 2 x shifts.” *Id.* The emails also state, “REMINDER: An appointment is required for all terminal transactions on a **First Come First Serve** basis.” *Id.*

Access Reply: The proposed fact contained a wordsmithing error. Access intended to contend that COSCO designates terminal for empty returns via eModal, which has been admitted. The remaining additional information offered by COSCO should be disregarded as it is not responsive to the proposed fact. Also, COSCO has now admitted for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68.

CF 21. eModal is a web based platform with provides [sic] visibility as to full and empty container status and the ability to make appointments for the pick up of full containers or return of empty containers to terminals in the Ports of Los Angeles and Long Beach, Dec. of Thompson, ¶5, CX01447.

RESPONSE: Admitted that eModal is a third-party platform used by ocean carriers, terminals, and drayage truckers to facilitate the pickup and return of containers at various ports. eModal is not owned or operated by COSCO. See <https://www.adventemodal.com/mission-and-vision.html> .

Access Reply; the fact is Admitted. Access did not allege COSCO owns or operates eModal but rather used eModal for its purposes.

CF 22. In addition, motor carriers such as Access, could obtain the designated empty container terminal location information through services such as Blue Cargo, Dec. of Thompson, ¶6,

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CX01447; Dec. of Ogawa, ¶4 CX01451.

RESPONSE: See Response to CF10.

Access Reply: See Access' Reply to CF10

CF 23. Access employees would consult the information provided by COSCO/eModal on a daily basis in an effort to determine if there were locations that were designated as an empty terminal location; Dec. of Thompson, ¶7, CX01447.

RESPONSE: Respondent lacks information sufficient to admit or deny Access One's alleged internal operations, except to note that Complainant has provided no evidence that it sought terminal appointments on weekend days. See RPFF 61-62. Respondent also objects to Complainant's citation to the declaration of William Thompson, which was not provided to Respondent during the discovery process.

Access Reply: First, COSCO has now admitted for all cancelled invoices and their related billed dates, Access "was able to demonstrate container return appointment unavailability" see COSCO Response to CF 68. As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.")). In response to the objection to the declaration of Thompson, Access was not obligated to produce the declaration during discovery as it did not exist. Access is entitled to use declarations in support of its brief. Mr., Thompson was listed a witness for Access it is initial disclosures, see CX01462. COSCO decided for its own reasons to not take Mr. Thompson's deposition prior to the discovery cut off at its peril, see also

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46 C.F.R. §§502.202 and 502.204.

The Dec. of Thompson indicates Access consulted the COSCO terminal broadcast and attempted to obtain appointments on at least a daily basis, See Dec. of Thompson, ¶¶ 7-9, CX01447, Supplemental Dec. of Thompson, ¶¶ 2-4, CX 01478-CX01480; Dec. of Suzuki, ¶15, CX01443 (“Access had dedicated employees who were responsible to attempt to secure appointments throughout the day”). COSCO’s RPF61-62 does not support the denial of this fact. RPF61 asserts that Access did not complain of lack of appointments on weekends, but as shown in response thereof, the “tickets” referenced do not differentiate between weekday or weekend lack of appointments. Fact RPF62 is patently false. As indicated in the response thereto, COSCO’s suggestion in the email referenced in RPF47 was for one specific weekend, February 12-13, 2022 (CX01397) not a continuing notice that illusory appointments were available on weekends, which Access already sought out on a routine basis. On the date the email was sent, Thursday, February 10, 2022, COSCO admits, Access found no appointments were available see RPF 48. See also CX01396. Nevertheless, Access, per its ordinary procedure continued to seek appointments on a daily basis and was able to return 17 containers on weekend days of February 13, 2022, February 19-20, 2022 and February 26, 2022, see Access Claim Summary CX1430-CX1435, column N. COSCO provides no evidence whatsoever that appointments were available for the return of COSCO’s empties on any weekend date on which Access had possession of empty containers. Instead, COSCO, by its actions, has admitted that locations and appointments were not available for the return of empties regardless of the day of the week, CF41, 43, 44 and 69.

CF 24. Where COSCO designated an empty return location, before an empty container could be returned, Access must then make an appointment with the designated terminal; Dec. of Thompson,

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¶8, CX01447.

RESPONSE: Complainant has not identified the “empty return location(s)” referenced in CF24 with adequate specificity for Respondent to admit or deny. Admitted that terminals generally require appointments to conduct container moves. Otherwise denied.

Access Reply: COSCO backhandedly admits the fact. As COSCO has not provided any contrary evidence thus the fact should be deemed admitted. COSCO also admits its own eModal generated broadcasts require appointments on a “First Come First Serve Basis” see RPF30. COSCO has now admitted for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68.

CF 25. Access discovered there were no actual appointments available to return empty containers to COSCO terminals even when COSCO had designated a terminal for returns; Dec. of Thompson, ¶9, CX01447, Dec. of Ogawa, ¶5, CX01451; Access Terminal Availability Summary, CX01436-CX01439, Blue Cargo screenshots, CX01092-CX01302, see generally eModal info and COSCO emails CX01311-CX01418.

RESPONSE: Denied. While, on occasion, AOT may have been unable to secure an appointment at the terminal to return an empty container, that does not mean “there were no actual appointments available to return empty containers to COSCO terminals.” See RPFs 46, 54. On February 10, 2022, in response to an email from AOT’s Nobu Suzuki, COSCO’s Phillip Taylor instructed, “There will be no issue securing empty return appointments during Friday night, or Saturday/Sunday day shifts. *Please plan to take advantage of the weekend offering.*” CX01397 (emphasis added). However, AOT has introduced no evidence showing that it ever attempted to return containers on the weekends,

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per COSCO's suggestion. See RPFFs 61-62.

Access Reply: First, COSCO has now admitted for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68. Without further clarification COSCO also admits “on occasion” Access was unable to obtain appointments. The Dec. of Thompson indicates Access consulted the COSCO terminal broadcast and attempted to obtain appointments on at least a daily basis, See Dec. of Thompson, ¶¶ 7-9, CX01447, Supplemental Dec. of Thompson, ¶¶ 2-4, CX 01478-CX01480; Dec. of Suzuki, ¶15, CX01443 (“Access had dedicated employees who were responsible to attempt to secure appointments throughout the day”). COSCO’s RPFF61-62 does not support the denial of this fact. RPFF61 asserts that Access did not complain of lack of appointments on weekends, but as shown in response thereof, the “tickets” referenced do not differentiate between weekday or weekend lack of appointments. Fact RPFF62 is patently false. As indicated in the response thereto, COSCO’s suggestion in the email referenced in RPFF47 was for one specific weekend, February 12-13, 2022 (CX01397) not a continuing notice that illusory appointments were available on weekends, which Access already sought out on a routine basis. On the date the email was sent, Thursday, February 10, 2022, COSCO admits, Access found no appointments were available see RPFF 48. See also CX01396. Nevertheless, Access, per its ordinary procedure continued to seek appointments on a daily basis and was able to return 17 containers on weekend days February 13, 2022, February 19-20, 2022 and February 26, 2022, see Access Claim Summary CX1430-CX1435, column N. COSCO provides no evidence whatsoever that appointments were available for the return of COSCO’s empties on any weekend date on which Access had possession of empty containers. Instead, COSCO, by its actions, has admitted that locations and appointments were not available for the return of empties regardless of the day of the week, CF41, 43, 44 and 69. See

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also Access response to RPFF46 and 54.

CF 26. Access would also contact the designated terminal or COSCO to determine alternative locations or appointment availability; Dec. of Thompson, ¶10, CX01448; see generally eModal info and COSCO emails CX01311-CX01418.

RESPONSE: Denied in that Complainant has not introduced any evidence that AOT contacted the designated terminals. Admitted that AOT occasionally reached out to COSCO between February 9 and April 5, 2022 to lament its difficulty obtaining appointments for single empty in transactions. See RPFF42. Otherwise denied.

Access Reply: COSCO's denial ignores the declaration testimony of Thompson, ¶10 CX01448. Further screenshots of terminal information was provided by Access, CX01323, CX01326, CX01329, CX01352-CX01356, CX01404-CX01407, CX01416-CX01417.

CF 27. Where dual transactions were required, Access did not have the requisite full container pick up to allow a delivery of an empty container to the terminal; Dec. of Thompson, ¶11, CX01448; eModal info and COSCO emails, CX01319, CX01320, CX10349, CX01357, CX01391, CX01402, CX01403.

RESPONSE: Respondent lacks sufficient knowledge regarding Complainant's internal operations to admit or deny.

Access Reply: As COSCO has not provided any contrary evidence, the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing

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party claims supports the proposed finding of fact.”).

CF 28. During the Relevant Time Period, as relevant to the current claim, Access had difficulties returning 379 containers and was invoiced detention charges totaling \$350,785.00; Dec. of Ogawa, ¶7, CX01451; Access Claim summary, CX01430-01435.

RESPONSE: Respondent lacks sufficient knowledge regarding Complainant’s internal operations to admit or deny.

Access Reply: COSCO has now admitted for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68. As COSCO has not provided any contrary evidence, the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”).

CF 29. COSCO admits Access disputed all of the detention invoices which are subject to this action, COSCO First Set of Discovery Responses, response to interrogatory no. 1, CX00108; Access Interrogatories, Set. 1, Exhibit A, CX00069-CX00076.

RESPONSE: Admitted that AOT disputed all of the detention invoices at issue. Denied that AOT submitted sufficient documentation to justify waiving each and every one of the invoices.

Access Reply: COSCO admits the proposed fact and for clarity COSCO has now admitted for all cancelled invoices and their related billed dates, Access “was able to demonstrate container

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return appointment unavailability” see COSCO Response to CF 68. COSCO’s superfluous qualification should be disregarded. COSCO also admits for all cancelled invoices Access provided sufficient information to demonstrate lack of appointment availability, see COSCO Response to CF 68. COSCO also has not submitted any evidence that Access did not submit sufficient information to justify cancellation the invoices and such statement contradicts it cancellation of Access’ invoices..

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Confidential-Redacted

CF 30. Before and during the pendency of this action, COSCO threatened to “shut out” Access for failure to pay all detention charges and on one occasion did shut out Access. In addition, COSCO also threatened to shut out Access in February 2022 when COSCO actually owed Access for unpaid invoices on Carrier Haulage performed by Access for COSCO; Dec. of Suzuki, ¶9, CX01442; Shut Out Notices CX01303-01310; Emails re Shut Out Notices CX01426-01429.

RESPONSE: Admitted that Respondent’s finance system sent automated shut out notices to Access One for unpaid detention charges. Admitted that UIIA sent notices to Access One. Denied to the extent that during the pendency of litigation, such automatic charges were manually overridden. Denied inasmuch as the threatened shut out was never effective, as COSCO timely instructed the UIIA: “do not shut out under disp pending trade review...” CX01308. Accordingly, UIIA immediately rescinded the shut out notice, and AOT was never shut out. CX01310 (Reinstatement of Interchange Privileges Effective Date: 03/29/2022).

Access Reply: COSCO admits the gravamen of the proposed fact. Further contrary to COSCO’s

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unsupported qualifications, Per Access' evidence provided, Access in fact was shut out on one occasion. Further Access takes exception to any characterization by COSCO that it is somehow allowable to send an improper shut out notice as long as it was automated and rescinded after the fact.

CF 31. Prior to the filing of Access' complaint, the claimed detention charges for 379 containers can be categorized as follows:

1. Detention charges were paid on 60 containers totaling \$42,795.00²
2. COSCO cancelled detention charges in whole or part on 200 containers totaling \$]110,270.00.
3. COSCO demanded payment of detention charges on 121 containers totaling \$197,720.00³; Dec. of Ogawa, ¶8, 9 CX01452; Access Claim Summary, CX01430-01435.

RESPONSE: Admitted.

CF 32. Access also made an additional payment of \$1,830.00 to be applied to invoice no. HOU00061918 which had multiple containers Dec. of Ogawa, ¶9, CX01452; Access Claim Summary CX01430-01435 including column X.

RESPONSE: Respondent admits that Complainant paid \$1,830.00 which Respondent applied to HOU00061918, as reflected in CX01430. Otherwise denied.

² Access also made an additional payment of \$1,830.00 to be applied to invoice no. HOU00061918 which had multiple containers (CF 32) The \$1,830.00 is included in the claim referenced herein. For ease of reference Access has allocated the payment to container no. CSNU1322655 which would increase the "paid" containers to 61 (CF 33).

³ The detail total more than 379 containers since COSCO partially cancelled some charges on 3 containers and then cancelled the remaining charges at a later date (CF 34).

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Access Reply: It is unclear as to what is “otherwise denied” Invoice HOU00061918 did in fact have multiple containers associated with that invoice. Dec. of Ogawa, ¶9, CX01452; Access Claim Summary CX01430-01435 including column X. A copy of the invoice was also submitted as CX00600-CX006001.

CF 33. For ease of reference Access has allocated the payment to container no. CSNU1322655 which would increase the “paid” containers to 61. Dec. of Ogawa, ¶9, CX01452; Access Claim Summary CX01430-01435.

RESPONSE: Denied that such reallocation made anything remotely easier. Further denied to the extent that Access One never informed COSCO about this reallocation.

Access Reply: The allocation was for the purposes of this action to account for the payment made. Access was simply attempting to be comprehensive with noting payments were allocated in its evidentiary table.

CF 34. The detail in CF 31 totals more than the 379 containers since COSCO partially cancelled some charges on 3 containers and then cancelled the remaining charges at a later date; Dec. of Ogawa, ¶10, CX01452, Access Claim Summary, CX01430-10435 including columns R & S.

RESPONSE: Admitted.

CF 35. COSCO’s actions in demanding payment of some detention charges but not others was arbitrary and capricious since COSCO would demand payment and also cancel charges for some of the same dates, and would demand charges when there was no availability to return the empty container or if only dual appointments were available. Dec. of Ogawa, ¶11, CX01452; Access

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Claim Summary, columns R, S, V and X CX01430-01435 and compare to Access Terminal Availability Summary data including columns C, D, and E, CX01436-CX01439.

RESPONSE: Denied. COSCO is not responsible whatsoever dual transactions, which are imposed by the marine terminals, and as such, COSCO is not required to reimburse a drayage provider who is unable to comply with the marine terminal's dual move requirement – especially AOT, who refused to work on the weekends. See RPFFs 61-62. Further denied because this purported “fact” is a poorly disguised conclusion of law (“demanding payment” was “arbitrary and capricious”).

Access Reply: COSCO has now admitted for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68. COSCO did not respond to the fact as posed and thus it should be deemed admitted. Instead, it attempts to one again pontificate that it should not be responsible for dual transactions. The fact states that COSCO charged detention for the same dates where others, were cancelled (see RPFF68); and charged detention on dates where there was no appointments available or only dual appointment which is also admitted. See Access Terminal Availability Summary CX01436-CX01439. The evidence identified in CF 35 supports this fact without any contra-evidence proposed by COSCO. As to any allegation that Access did not attempt to return containers during the weekends, see reply to CF5, 9, 23, & 25 and COSCO's response to CF 68.

CF 36. COSCO, during discovery herein, refused to explain this arbitrary conduct and instead only referred to its policies in its tariff; COSCO First Set of Discovery Responses, response to interrogatories nos. 5, 8, 10 and 14, CX00098-CX00102.

RESPONSE: Denied that referring Complainant to COSCO's published policies and

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procedures equates to a refusal to explain its conduct. Further denied that COSCO's conduct was "arbitrary."

Reply: Access stands by its proposed fact and evidence thereon. COSCO's denial is without substance simply contradicts the statement without evidence or explanation as to how COSCO's actions were not arbitrary.

CF 37. During the pendency of this action COSCO reversed course on the outstanding unpaid detention invoices. As early as May 2024 COSCO cancelled all detention charges on the previously pending open invoices except for one partial invoice; Declaration of Ogawa, ¶12, CX01452-CX01453; COSCO Response to discovery, Set 2, CX00137-CX00139; Access Requests for Admissions Set 2, CX00121-CX00129; COSCO Invoices 2024, CX01419-CX01425.

RESPONSE: Admitted.

CF 38. COSCO has confirmed that only the one partial invoice remains outstanding which was part of Access' original claim. Declaration of Ogawa, ¶12, CX01452-CX01453; COSCO Response to discovery, Set 2, CX00137-CX00139; Access Requests for Admissions Set 2, CX00121-CX00129; COSCO Invoices 2024; CX01419-CX01425.

RESPONSE: Admitted.

CF 39. at present, the invoices related to the claim on the 379 containers stand as follows:

1. Detention charges were paid on 61 containers totaling \$45,995.00.
2. COSCO cancelled detention charges in whole or in part on 319 containers totaling \$307,990.00. One of these containers is also [sic] included in the

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calculation of the amount of containers paid. See CF 37, 38; Dec. of Ogawa ¶13 CX01453; Access Claim Summary CX01430-01435.

RESPONSE: Admitted.

CF 40. COSCO has admitted to the violations complained by Access. CF 37-39, 42.

RESPONSE: Denied.

Access Reply: As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). Access cited proof for this fact CF 37-39 which were admitted by COSCO and CF 42 which was denied by COSCO without any explanation or contrary evidence. COSCO also admits it was required to provide adequate facilities for its operations including empty returns, see COSCO response to CF 115 and for all cancelled invoices and their related billed dates, Access "was able to demonstrate container return appointment unavailability" see COSCO Response to CF 68.

CF 41. COSCO cancelled the invoices knowing they were for charges when there was no terminal availability for the return of empty containers CF 37-40, 42.

RESPONSE: Respondent admits that it cancelled invoices. Respondent denies that it knew there was "no terminal availability." Respondent notes that COSCO had no way of knowing whether Complainant may not have been able to obtain appointments or make dual transaction movements until Complainant apprised COSCO of such difficulties. Otherwise

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denied.

Access Reply: COSCO has now admitted for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68. As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). COSCO has admitted in its responsive brief that it cancelled invoices because of lack of terminal availability or appointments. It stated at pg. 3 of its Opposition Brief: At the same time, the FMC also identified that, in some cases, detention charges could not perform that function, specifically where the “terminal refuses to accept the container” and in those cases, the charges should be cancelled or waived (as COSCO did with respect to the vast majority of charges to AOT). Id. at 29656.” [REDACTED]

[REDACTED]

[REDACTED] Confidential-Redacted

CF 42. When comparing the dates on which COSCO demanded and accepted payment of detention charges to the dates on which COSCO has now cancelled detention charges, all but 24 dates have been withdrawn by COSCO; Dec. of Ogawa, ¶14 CX01453; See Access Claim Summary XC01430-01435, column E as compared to Access Terminal Availability Summary CX01436-CX1439 columns A, C-E.

RESPONSE: Denied.

Access Reply: As COSCO has not provided any contrary evidence the fact should be deemed

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admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.")). COSCO's unsupported denial should be disregarded.

CF 43. Even though COSCO has now admitted that there was no availability for empty returns on the vast majority of the dates at issue, Access has provided evidence that the containers could not be returned and detention should have been cancelled; Dec. of Ogawa, ¶15 CX01453; Blue Cargo screen shots CX01092-CX01320L eModal information and Emails with COSCO, CX01311-CX01418; Access Terminal Availability Summary CX01436-CX01439; and Dec. of Thompson ¶7-10 CX01447-CX01448.

RESPONSE: Denied in part. Admitted that Complainant has provided evidence for certain dates in dispute but not for other dates. See RPFF70. Otherwise denied.

Access Reply: COSCO partially admits the fact and COSCO has now admitted for all cancelled invoices and their related billed dates, Access "was able to demonstrate container return appointment unavailability" see COSCO Response to CF 68. As to its "otherwise denied" as COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.")). See also Access response to RPFF70. . COSCO's denial should be disregarded.

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CF 44. In the few instances where Access does not have documentary information as to terminal locations on certain dates, Access' witness testimony and COSCO's action in cancelling the related invoices should suffice to show the violation; see CF 43 and evidence thereon.

RESPONSE: Denied. First, it was not COSCO but the marine terminals who required a trucker to return an empty container in order to pick up a loaded container, otherwise known as a one-for-one swap, dual transaction, or dual move. Denied that Access One has asserted, much less demonstrated, that any particular invoice COSCO issued to AOT was "related" to any other. Denied that COSCO's agreement to cancel or waive any other invoices it may have issued to Access One in any way "shows" any unspecified alleged violation. Second, the law requires that a complainant must *prove* that, for each location on each date in question: (1) the complainant (or its agent) could not pick up or return the container on the specific date (2) due to reasons outside of its control; and (3) the charge assessed for that specific day could not have served to incentivize cargo movement. *TCW, Inc. v. Evergreen Line Joint Service Agreement*, 3 FMC 2d 1 (S.O. 2021), *aff'd* 5 FMC 2d 192 (FMC 2022), *vacated and remanded*, *Evergreen Shipping Agency (America) Corp. v. FMC*, 106 F.4th 1113 (D.C. Cir. 2024) ("TCW").

Access Reply: First, COSCO has now admitted for all cancelled invoices and their related billed dates, Access "was able to demonstrate container return appointment unavailability" see COSCO Response to CF 68. As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing

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party claims supports the proposed finding of fact.”). COSCO’s narrative is not responsive to the proposed fact but instead parrots some of COSCO’s opposition arguments. Access’s opening and reply briefs provide detailed argument with supporting evidence of COSCO’s violations including under any potentially applicable standard under TCW. As to “related” invoices, Access was only referring to a temporal element i.e. that COSCO had cancelled charges for invoices on the same dates where invoices still remain uncanceled. COSCO does not deny this fact.

CF 45. During the Relevant Time Period, since Access was unable to return the empty containers, Access was forced to keep the empty containers mounted on chassis owned or controlled by Access or a pool chassis, and was forced to be responsible for the storage of COSCO’s empty containers at yards controlled by Access or which Access had access to; Dec. of Suzuki, ¶10 CX01443.

RESPONSE: Denied that Access was “unable” to return empty containers when a dual transaction was required. Perhaps improved operations (such as working on weekends) or better management would have permitted Access One to complete dual transactions as required by the terminal just as many other drayage providers have been able to do. Regardless, that Access One could not meet the requirements of a marine terminal on a particular day was neither COSCO’s fault nor responsibility.

Access Reply: First, COSCO has now admitted for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68. COSCO has also admitted Access incurred these charges, see COSCO response to CF 48. As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by

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an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). The proposed fact is not limited to dual transactions and nevertheless, COSCO’s denial regarding dual containers also contradicts earlier admitted facts where it had no information to admit or deny if Access had the ability to comply with dual requirements. See COSCO’s response to CF 27. Instead of providing facts COSCO speculates and suggests Access should revise its operations even though the evidence provided shows Access ON A DAILY BASIS attempted to return COSCO’s empties. See Dec. of Thompson, ¶¶ 7-9, CX01447, Supplemental Dec. of Thompson, ¶¶2-4, CX 01478-CX01480; Dec. of Suzuki, ¶15, CX01443 (“Access had dedicated employees who were responsible to attempt to secure appointments throughout the day”). Access, was able to return 17 containers on weekend days February 13, 2022, February 19-20, 2022 and February 26, 2022, see Access Claim Summary CX1430-CX1435, column N. COSCO provides no evidence whatsoever that appointments were available for the return of COSCO’s empties on any weekend date on which Access had possession of empty containers. Instead, COSCO, by its actions, has admitted that locations and appointments were not available for the return of empties regardless of the day of the week, CF 41, 43, 44 and 69 and COSCO response to CF 68.

COSCO has also admitted it is responsible for its operations including having adequate ability to accept empty containers, see response to CF115.

CF 46. COSCO’s recent statement of account also lists two additional invoices which are outside of the scope of the Relevant Time Period and not subject to this action; Dec. of Ogawa, ¶12, CX01452-CX01453.

RESPONSE: Admitted.

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CF 47. Because of the ongoing difficulties in obtaining empty terminal locations, where indicated by stop over charges in the Access Claim Summary, Access would stop over the container at its yard and then arrange for re-delivery once terminal appointments became available instead of taking the empty directly from consignee's premises directly back to the COSCO designated terminal; Dec. of Suzuki, ¶11 CX01443.

RESPONSE: Respondent lacks information sufficient to admit or deny. Respondent notes that Complainant's inability to return containers to the terminal in conformity with the conditions imposed by the terminal is neither COSCO's fault nor responsibility.

Access Reply: As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). COSCO has also admitted it is responsible for its operations including having adequate ability to accept empty containers, see response to CF115.

CF 48. Storage charges, chassis charges, stop over charges and redelivery charges were assessed by Access to COSCO. Dec. of Suzuki, ¶12 CX01443; Access invoices to COSCO, CX00713-CX01091.

RESPONSE: Admitted that AOT issued invoices to COSCO for its own storage charges, chassis charges, stop over charges and redelivery charges which AOT itself had incurred due to its own mismanagement, including its lack of a customer base sufficient to support dual

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transactions and its refusal to work on weekends. *See* RPFFs 61-62. Denied that such invoices were in any way valid or issued in conformity with the UIIA or any other agreement. Further denied that such invoices reflect AOT's actual costs, if any.

Access Reply: First, COSCO admits "AOT incurred these charges". As COSCO has not provided any contrary evidence for any attempted denial, the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.>"). COSCO's pejorative and derogatory remarks as to Access' operations are without basis and evidence and contradict the evidence provided by Access in relation to this fact throughout these proposed facts and replies, see replies to CF 5, 9, 23, 25, 45, 83 and 89. Specifically COSCO fails to provide any authority or evidence which would require Access to have complementary full container pick ups to meet dual container requirements. COSCO also contradicts itself when it responded it had no information to admit or deny if Access had the ability to comply with dual requirements see COSCO's response to CF 27.

CF 49. The charges, including the dates on which they were assessed are reflected on invoices sent to COSCO by Access; Dec. of Suzuki, ¶13 CX01443; Access invoices to COSCO, CX00713-CX01091; Dec. of Ogawa ¶16, CX01453-CX01454; Access Claim Summary CX01430-01435 including columns AB-AF.

RESPONSE: Denied.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3

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which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). Access stands by its proposed fact and proof thereon.

CF 50. COSCO has not remitted payment to Access on any of the claimed storage, chassis, stop over and re-delivery charges; Dec. of Ogawa, ¶17 CX01454.

RESPONSE: Admitted that COSCO’s position is that Access is not entitled to payment from COSCO for any of the charges Access alleges were included in invoices Access One claims it issued to COSCO.

Access Reply; COSCO does not respond to the proposed fact as written. As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). Access stands by its proposed fact and proof thereon.

CF 51. The following charges were assessed by Access to COSCO in relation to the relevant empty containers:

Storage charges of \$115,975.00

Chassis charges \$103,080.00

Stop over charges \$30,750.00

Re-delivery charges \$19,680.00; Dec. of Ogawa, ¶18 CX01454; Access Claim

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Summary, including columns AB-AF, CX01430-01435; Access invoices to COSCO, XC00713-CX01091.

RESPONSE: Denied that Access One is entitled to reparations for any of those charges.

Access Reply; COSCO does not respond to the proposed fact as written. As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). Access has provided ample proof of these figures and the reasonableness thereof. Also, in response to CF 48 COSCO admits Access incurred these charges.

CF 52. No person or entity has paid Access for the charges identified in CF 51; Dec. of Ogawa, ¶17 CX01454.

RESPONSE: Respondent lacks sufficient information regarding Complainant's internal operations to admit or deny. Respondent objects to Complainant's citation to a declaration of an AOT employee that was not produced in discovery.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). Access stands by its proposed fact and proof thereon. In response to the objection to the declaration of Ogawa, Access was not obligated to produce the declaration during discovery as it did not exist. Access is entitled to use declarations

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in support of its brief. Ms. Ogawa was listed a witness for Access it is initial disclosures, see CX1462. COSCO decided for its own reasons to not take Ms. Ogawa's deposition prior to the discovery cut off at its peril, see also 46 C.F.R. §§502.202 and 502.204.

CF 53. The violations of 46 U.S.C. §§41104(a)(3) & (8) are predicated on the unlawful practice of requiring "dual" transactions to return an empty container; Access' allegations are repeated in the Answer at pgs. 13-14; CX00014-CX00015.

RESPONSE: To the extent that CF53 is a conclusion of law, no response is required. Respondent does not comprehend this purported "fact" and consequently cannot respond to it, save to reiterate that "dual transactions" are requirements imposed by the marine terminals to ensure the fluidity of their gate operations, and over which COSCO has no control.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). Access has provided sufficient proof for its proposed fact. Further "[t]o the extent that individual findings of fact may be deemed conclusions of law, they shall also be considered conclusions of law. Similarly, to the extent individual conclusions of law may be deemed findings of fact, they shall also be considered findings of fact. Hapag-Lloyd A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c), FMC Dkt. 21-09 (I.D. April 22, 2022) at page 4.

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CF 54. Access was unable to return empty containers when a “dual” transaction was required; Dec. of Thompson, ¶11 CX01448; eModal info and COSCO emails, CX01319, CX01320, CX01349, CX01357, CX01391, CX01402, CX01403.

RESPONSE: Denied that Access was “unable” to return empty containers when a dual transaction was required. Perhaps improved operations (such as working on weekends) or better management would have permitted Access One to complete dual transactions as required by the terminal just as many other drayage providers have been able to do. Regardless, that Access One could not meet the requirements of a marine terminal on a particular day was neither COSCO’s fault nor responsibility.

Access Reply: First, COSCO has now admitted for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68. As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). COSCO’s pejorative and derogatory remarks as to Access’ operations are without basis and evidence and contradict the evidence provided by Access in relation to this fact. Specifically, COSCO fails to provide any authority or evidence which would require Access to have complementary full container pick ups to meet dual container requirements. Also Access has addressed its evidence that Access did in fact operate on weekends and COSCO’s lack of evidence for its position thereon see Access Replies for CF5, 9, 23, 25, 45, 53 and 89. COSCO also contradicts itself when it responded it had no information to admit or deny if Access had the ability to comply with dual requirements see COSCO’s response

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to CF 27.

CF 55. Dual move requirements, and more specifically, an ocean carrier imposing detention when a trucker's inability to return a container within free time is due to it not being able to satisfy a dual move requirement is not a reasonable practice; 85 FR 29638, 29655; Dec. of Suzuki ¶14, CX01443.

RESPONSE: Denied. First, this purported fact is a legal conclusion. Second, a drayage provider's inability to satisfy terminal requirements is neither within the control or the responsibility of the ocean carrier.

Access Reply: As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). COSCO also contradicts itself when it responded it had no information to admit or deny if Access had the ability to comply with dual requirements see COSCO's response to CF 27. COSCO is wholly in control as to when it will issue a detention invoice for any reason (or not) as provided in its tariff or UIIA. see COSCO's Rules Tariff CX00451-CX00454 and UIIA addendum, CX00147 -CS00153, but at all times, such invoices must be valid in the first instance.

CF 56. When challenged, COSCO's equipment department indicated they had no control over its designated terminals appointment system, Dec. of Thompson ¶12 CX01448; eModal Information and Emails with COSCO, CX1387, CX1401, CX01413; see also COSCO First Set of Discovery

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Responses response to request for admission no 10, CX00110.

RESPONSE: Admitted that, as a matter of law, COSCO does not control the appointment system for the return of empty containers for any marine terminal.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). To the extent COSCO claims as a "matter of law" it does not control appointment systems at its contracted terminals should be disregarded without any supporting evidence or authority. Instead COSCO admits its obligation to provide for adequate facilities for its operations, see COSCO's response to CF 115.

CF 57. COSCO advised Access if there was an issue with appointments Access should dispute the charges with COSCO in Shanghai, Dec. of Thompson ¶12 CX01448; eModal Information and Emails with COSCO, CX01387, CX01401, CX01413.

RESPONSE: Admitted that COSCO's Shanghai office is the proper venue for disputing detention charges.

Access Reply; COSCO partially admits the fact. As for the remainder COSCO has not provided any response or contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.").

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CF 58. Access was charged detention on 379 separate containers over the course of 15 months, see generally Access Claim Summary CX01430-01435.

RESPONSE: Admitted.

CF 59. When disputed, COSCO refused to accept that terminals did not have appointments or space or required dual appointments that could not be fulfilled. In the context of this complaint, those actions were not isolated but occurred from July 2021 through May 2024 when COSCO finally withdrew the remaining disputed invoices. CF 30, 35, 37-40, 60, 65, 62.

RESPONSE: Denied. COSCO did not refuse to waive or cancel invoices when Complainant disputed them. In fact, AOT admits that COSCO waived or cancelled at least 318 out of the 379 invoices AOT has disputed.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). Access' evidence supports the fact that cancellation of the last batch of invoices took at minimum of 18 months after the last subject shipment and indeed over two years after the emails and acknowledged trouble tickets were sent to COSCO see CF 67. Further COSCO has not yet cancelled 60 additional invoices to date, see CF 33. COSCO has now admitted for all cancelled invoices and their related billed dates, Access "was able to demonstrate container return appointment unavailability" see COSCO Response to CF 68.

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CF 60. COSCO threatened to shut out Access on at least two separate occasions and did shut out Access on one occasion. COSCO also threatened to shut out Access in February 2022 when COSCO actually owed Access for unpaid invoices on Carrier Haulage performed by Access; Dec. of Suzuki, ¶9, CX01442; Shut Out Notices, CX01303-CX1310; Emails re Shut Out, CX01426-CX01429.

RESPONSE: Denied. Although the UIIA's automated system generates shut out warning letters, COSCO never imposed a shut out against AOT and never prevented AOT from accessing a terminal ("shut out"). Admitted that the UIIA administrator sent automated shut out notices to Access One for unpaid detention charges. Denied to the extent that during the pendency of litigation, such automatic notices were manually overridden. Denied inasmuch as the threatened shut out was never effective, as COSCO timely instructed the UIIA: "do not shut out under disp pending trade review..." CX01308. Accordingly, UIIA immediately rescinded the shut-out notice and AOT was never shut out. CX01310 (Reinstatement of Interchange Privileges Effective Date: 03/29/2022).

Access Reply: As COSCO has not provided any contrary evidence the fact should be deemed admitted in its entirety (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.").. Further evidence provided by Access specifically states that Access was in fact shut out for a short time. COSCO also admits it directly sent shut out noticed to Access, see response to CF 30. Even if the shut out notices were manually overridden, it does not excuse the faulty notice in the first instance.

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CF 61. COSCO's practice was to provide a system of inadequate space for the return of empty containers, refuse to acknowledge the lack of space, take no steps to correct the issue for over three years, and put the burden on a motor carrier to dispute known invalid charges, CF *passim*.

RESPONSE: Denied. CF61 is a legal conclusion masquerading as a statement of fact.

Access Reply: As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). Further "[t]o the extent that individual findings of fact may be deemed conclusions of law, they shall also be considered conclusions of law. Similarly, to the extent individual conclusions of law may be deemed findings of fact, they shall also be considered findings of fact. Hapag-Lloyd A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c), FMC Dkt. 21-09 (I.D. April 22, 2022) at page 4.

CF 62. If COSCO's invalid invoices were not paid, COSCO would threaten a shut out in an attempt to nevertheless enforce compliance, Dec. of Suzuki, ¶9, CX01442; Shut Out Notices CX01303-01310; Emails re Shut Out Notices CX01426-01429.

RESPONSE: Denied that COSCO's automated shut out notices are sent as a "threat . . . to enforce compliance."

Access Reply: As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by

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an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). COSCO also admits it directly sent shut out notices to Access, see response to CF 30.

The fact provided by Access is supported by the nature of the shut out notices themselves, i.e. unless Access complied with COSCO’s demands, it would be shut out and not be allowed to interchange COSCO equipment regardless if it was for merchant or carrier haulage.

CF 63. Access’ claim concerns detention charges concerning 379 containers over the course of 262 different discrete dates from July 13, 2021 through October 10, 2022; CF 28, 58; Access Claim Summary CX01430-CX01435, including columns N & V; Access Terminal Availability Summary CX01436-CX01439, including column A.

RESPONSE: Denied. Access One’s claims concern only outstanding detention invoices.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). Throughout its opening brief, reply and these proposed facts, Access has adequately shown its claims are for more than outstanding detention invoices. COSCO has no authority to recraft Access’ claims. Access was unequivocal that it only waived claims as to 20 identified containers (see Access Opening Brief, pg. 5, fn.1) and it claims for damages related to all 379 containers (see Access Opening Brief, passim, and Access Reply Brief, see also CF 28, 31, 45, 58, 59, 68, 83). COSCO also admits Access is claiming incurred storage, chassis, stop off and redelivery charges on all 379 containers COSCO response

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to CF 45. COSCO also does not deny the detention charges concerning 379 containers were over the course of 262 different discrete dates from July 13, 2021 through October 10, 2022.

CF 64. Prior to the suit, COSCO had already cancelled charges totaling \$110,270.00 concerning 200 containers; Access Claim Summary CX01430-01435 column R.

RESPONSE: Admitted that COSCO has cancelled and waived these charges, and more.

Access Reply: As COSCO has admitted the fact but has not provided any contrary evidence that is cancelled “more” and thus should be disregarded.

CF 65. Instead of cancelling detention for all invoices where dates reflected detention was unwarranted, COSCO arbitrarily cancelled charges for 80 dates where which [sic] have also been paid by Access; Dec. of Ogawa, ¶19 CX01454; Access Terminal Availability Summary CX01436-CX01439 columns A, C - E.

RESPONSE: Admitted that COSCO cancelled charges for 80 of the dates for which Access had paid detention charges. Denied that such cancelations were arbitrary. Respondent further objects to Complainant’s cited source, the testimony of Kahana Ogawa, an Access One employee and witness whose declaration was not provided to Respondent during the discovery period.

Access Reply: COSCO admits the fact. As to it attempted qualification; COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of

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fact.”). In response to the objection to the declaration of Ogawa, Access was not obligated to produce the declaration during discovery as it did not exist. Access is entitled to use declarations in support of its brief. Ms. Ogawa was listed a witness for Access it is initial disclosures see CX1462. COSCO decided for its own reasons to not take Ms. Ogawa’s deposition prior to the discovery cut off at its peril, see also 46 C.F.R. §§502.202 and 502.204. COSCO has also now admitted for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68.If that is the case, then COSCO should have cancelled all charges related to dates on which Access provided evidence of no appointment availability.

CF 66. During the course of this action, COSCO cancelled detention charges of \$197,720.00 for an additional 121 containers, Dec. of Ogawa, ¶20 CX01454; Access Claim Summary, including column S, CX01430-01435; COSCO Response to discovery, Set 2, CX00137-CX00139; Access Requests for Admissions Set 2, CX00121-CX00129; COSCO Invoices 2024, CX01419-CX01425.

RESPONSE: Admitted that COSCO cancelled charges for 121 containers and more.

Access Reply; COSCO admits the fact. As to it attempted qualification; COSCO has not provided any contrary evidence that it cancelled “more” invoices during the pendency of this litigation. The fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”).

CF 67. As of the date of this filing, all that remains are 24 dates which COSCO insists on continued

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billing; CF 42.

RESPONSE: Admitted.

CF 68. All that remains are 24 dates on which COSCO insists on continued billing (CF67). In short, for detention billing representing 319 of 379 containers related to 238 of 262 billed dates, COSCO admits its detention billing practices were in error, CF42, CF67.

RESPONSE: Respondent admits that it has canceled charges for 84% of containers (319/379) and 90% of billing dates, representing those containers and dates for which Access One was able to demonstrate container return appointment unavailability. Denied that such canceled charges in any way constitute an admission that a practice of assessing detention when a container is returned past free time or any other billing practices were in error, as waiving a charge in retrospect does not mean such charge was issued in error.

Access Reply; COSCO admits the fact. As to it attempted qualification; COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). COSCO also admits for all cancelled invoices, Access was able to demonstrate container return appointment unavailability thus COSCO should have cancelled all charges related to dates on which Access provided evidence of no appointment availability.

CF 69. By its actions COSCO admits, it did not have adequate facilities for the return of its empty containers, was arbitrary and capricious with regard to its detention billing practices, its resolution

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of disputes and its attempts to enforce non-payment of invalid invoices by threatening to shut out Access. CF30, 60, 62.

RESPONSE: Denied that COSCO has admitted any such thing. First, this purported fact is another thinly disguised legal assertion. Second, the terminal facilities are the purview of the terminals, not the carriers. Finally, any shut out notices sent to Access One were automatically sent as a result of Access's failure to timely pay COSCO and were sent by UIIA, were not intended to be threatening, and were manually overridden at the request of COSCO.

Access Reply: "To the extent that individual findings of fact may be deemed conclusions of law, they shall also be considered conclusions of law. Similarly, to the extent individual conclusions of law may be deemed findings of fact, they shall also be considered findings of fact. Hapag-Lloyd A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c), FMC Dkt. 21-09 (I.D. April 22, 2022) at page 4. COSCO admits its responsibility to provide for adequate facilities for empty returns, see, COSCO response to CF 115 and that for all cancelled invoices and their corresponding applicable dates, Access "was able to demonstrate container return appointment unavailability", see COSCO Response to CF 68.. Also attempting to once again deflect from its conduct, COSCO now blames the shut out notices on the UIIA. The notices themselves state the UIIA has "received notice that the Equipment Provider listed below plans to suspend your company's interchange". CX01304-CS01310.

CF 70. COSCO did not have a single dedicated terminal for the return of empty containers the LALB; Access Terminal Availability Summary CX01436-CX01439; Blue Cargo screen shots, CX01092-CX01302; eModal Information and Emails with COSCO, CX01311-CX01418.

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RESPONSE: Admitted that COSCO had multiple return locations available for the return of empty containers in the Port of Los Angeles and Long Beach during the relevant period. Otherwise denied.

Access Reply; COSCO has admitted the fact. As to the “otherwise denied” Access cannot determine what is “otherwise denied” Nevertheless, as COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”).

CF 71. On a regular workday basis, COSCO through eModal would publish/email a matrix of its designated terminals in LA/LB and the availability for empty return locations, CF9.

RESPONSE: Admitted.

CF 72. Once the eModal list is published and distributed, a motor carrier such as Access, would then attempt to obtain an appointment at the designated terminal; CF24; CF25; Dec. of Thompson, ¶3 CX01447.

RESPONSE: Respondent lacks sufficient information regarding Complainant’s internal operations to admit or deny.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing

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party claims supports the proposed finding of fact.”) . Access stands by its proposed fact and evidence thereon. COSCO also admits eModal directs motor carriers to make appointments with terminals on a first come first serve basis, see RPF30.

CF 73. Because of continuing issues with obtaining appointments with designated terminals, Access had dedicated employees which were responsible to attempt to secure appointments several times throughout the day; Dec. of Suzuki, ¶15 CX01442; Dec. of Thompson ¶7 CX01447.

RESPONSE: Respondent lacks sufficient information regarding Complainant’s internal operations to admit or deny.

Access Reply: As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). Access stands by its proposed fact and evidence thereon.

CF 74. When appointments were unavailable, Access would often contact COSCO, notifying COSCO that appointments were not available, seeking alternative locations; CF26, CF56, CF57, Dec. of Thompson, ¶10, CX01448; eModal Information and Emails with COSCO CX01311-CX01418.

RESPONSE: Admitted that AOT contacted COSCO at various times between February 9 and April 5, 2022, to complain of difficulties obtaining appointments for single returns. See RPF42. Otherwise denied.

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Access Reply; COSCO admits the fact presented. As COSCO has not provided any contrary evidence for its “otherwise denied” the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). Access stands by its proposed fact and evidence thereon. COSCO’s notation of “otherwise denied” is without any supporting evidence.

CF 75. Access has been able to confirm the lack of empty return locations in several ways: A) COSCO’s admissions CF37-40, 42, 68, 69; B) Blue Cargo information CX01092-CX01302; C) testimony and email communications produced from Access CF9, 10, 25 and 43.

RESPONSE: Denied. A) COSCO has not admitted to a “lack of empty return locations”; B) Blue Cargo information is neither credible or nor reliable (see RCFF 69) [sic]; C) the self-serving testimony of Complainant’s principal is unreliable.

Access Reply; First, as to all cancelled invoices, regardless of how Access confirmed the lack of empty return locations and appointments is not necessarily controlling since COSCO has now admitted for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68. As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). COSCO’s objections to the Blue Cargo screen shots should be overruled. The

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Presiding Officer in Hapag-Lloyd A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c), FMC Dkt. 21-09 (I.D. April 22, 2022). did not independently establish any unreliability of Blue Cargo screenshots; instead, it accepted as fact, the unopposed proposed fact that Blue Cargo information is sometimes inaccurate. Id. initial decision at pg.15. The Presiding Officer did not exclude Blue Cargo evidence, indeed Respondent Hapag-Lloyd also used Blue Cargo evidence in support of its defense, Id. initial decision at pg.15. Contrary to COSCO's assertions the Presiding Officer also found that the Blue Cargo data is taken directly from marine terminal websites Id., initial decision at 15. In the instant case, COSCO as part of their proposed facts has stated "Blue Cargo is a third-party platform that collects information about vessel schedules, weekly terminal gate schedules, and container status, and provides notifications to subscribers" RPFF27. COSCO has provided no contra evidence to rebut the veracity of the Blue Cargo information and thus its objection should be overruled reliance on Blue Cargo information should be allowed. Additionally, COSCO's objection without specificity that the declaration of Access' principal (presumably Suzuki) is "self serving" should be overruled. That alone is no basis for rejection of the declaration. Further, the evidence cited b Access also includes declarations of Thompson and Ogawa.

CF 76. COSCO, by cancelling detention for 238 of 262 disputed dates, has verified Access' position that no space was available for the return of empty containers for over 15 months! Access Terminal Availability Summary, CX01436-CX01439 including columns A, C-E; Access Claim Summary, CX01430-CX01435 including columns N, R, S & V.

RESPONSE: Denied. Moreover, assuming *arguendo* that AOT was genuinely unable to secure an appointment, this still would not mean that "no space was available for the return

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of empty containers for over 15 months.”

Access Reply; First, COSCO has admitted this fact previously. In response to CF 68 COSCO states confirms for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68. Additionally, as COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). Access has provided sufficient evidence to support its proposed fact.

CF 77. Blue Cargo screenshots show that even when COSCO professed to have terminal space available, such space was illusory since no appointments were available; Access Terminal Availability Summary, CX01436-01439; Blue Cargo Screen Shots CX01902-CX01302.

RESPONSE: Denied. Blue Cargo does not receive its information directly from any marine terminal and is not sanctioned by any marine terminal. In other proceedings, the Presiding Officer has recognized that “Blue Cargo’s data is sometimes inaccurate.” *Hapag-Lloyd A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c)*, FMC Dkt. 21-09 (I.D. April 22, 2022). Respondent objects to Blue Cargo screen shots as irrelevant and unreliable. Terminals in the LA/LB area release (i.e., make available) appointments either daily (PCT, LBCT) to 1.5 weeks to 2 weeks in advance (Fenix)[“FMS”]. Prudent drayage providers, therefore, plan their dispatches accordingly, as appointments are taken up quickly. If AOT did not timely attempt to make appointments, the Blue Cargo screenshots

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showing the lack of available appointments on a certain day as of that morning do not identify whether adequate appointments were ever available.

Access Reply; First, COSCO has admitted this fact previously. In response to CF 68 COSCO states confirms for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68. COSCO’s objections to the Blue Cargo screen shots should be overruled. The Presiding Officer in Hapag-Lloyd A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c), FMC Dkt. 21-09 (I.D. April 22, 2022). did not independently establish any unreliability of Blue Cargo screenshots; instead, it accepted as fact, the unopposed proposed fact that Blue Cargo information is sometimes inaccurate. Id. initial decision at pg.15. The Presiding Officer did not exclude Blue Cargo evidence, indeed Respondent Hapag-Lloyd also used Blue Cargo evidence in support of its defense, Id. initial decision at pg.15. Contrary to COSCO’s assertions the Presiding Officer also found that the Blue Cargo data is taken directly from marine terminal websites Id., initial decision at15. In the instant case, COSCO as part of their proposed facts has stated “Blue Cargo is a third-party platform that collects information about vessel schedules, weekly terminal gate schedules, and container status, and provides notifications to subscribers” RPF27. COSCO has provided no contra evidence to rebut the veracity of the Blue Cargo information and thus its objection should be overruled reliance on Blue Cargo information should be allowed (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”).

COSCO’s eModal emails to the trucking community do not state if any appointments are

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available. The eModal broadcasts only show which terminals COSCO has designated for empty returns, attempt to show if they are “open” or “closed” or if other restrictions apply such as dual transactions see generally CCX01311-CX01418. Thereafter COSCO admits it is up to the motor carrier to verify that information and also determine if appointments are available for returns even if a terminal shows “open”, RPFF29-30.

In addition, COSCO contradicts itself as to appointment availability. COSCO admits that terminal designation to return empties was on a work day basis through eModal See COSCO Response to CF 71. If a motor carrier has to wait for the daily broadcast as to the appropriate locations for empty returns, how can it books appointments 1.5 to 2 weeks out?

CF 78. Access attempted to contact COSCO and the terminals themselves to find locations and available appointments without success CF26, CF56, CF57, CF74.

RESPONSE: Denied that Complainant has introduced any evidence whatsoever of any attempts to contact the marine terminals themselves. Admitted only to the extent that AOT attempted on a handful of occasions to contact COSCO to complain of its lack of success booking appointments. See RPFF 42-61.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). Access cited evidence supports its proposed fact. COSCO’s denial ignores the declaration testimony of Thompson, ¶10 CX01448 and screenshots of terminal information provided by Access, CX01323, CX01326, CX01329,

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CX01352-CX01356, CX01404-CX01407, CX01416-CX01417.

CF 79. COSCO's inability to provide for adequate terminal facilities for the timely return of empty containers harmed cargo fluidity; Dec. of Suzuki, ¶16, CX01443.

RESPONSE: Denied. This is another legal conclusion disguised as a statement of fact.

Access Reply: As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). Further "[t]o the extent that individual findings of fact may be deemed conclusions of law, they shall also be considered conclusions of law. Similarly, to the extent individual conclusions of law may be deemed findings of fact, they shall also be considered findings of fact. Hapag-Lloyd A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c), FMC Dkt. 21-09 (I.D. April 22, 2022) at page 4.

CF 80. Apart from generalized guidance in its tariff, COSCO has not identified any other rules or procedures in which it addresses its improper detention billing practices; COSCO First Set of Discovery Responses, response to interrogatories nos. 5, 8, 10 and 14, CX00098-CX00102; COSCO's Rules Tariff, CX00455-CX00456.

RESPONSE: Denied that COSCO's detention billing practices are improper. Otherwise admitted.

Access Reply: COSCO admits the fact except for the characterization of its billing practices. However, the fact should be deemed admitted as COSCO has not provided any contrary evidence

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the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.") . Access stands by its proposed fact and evidence thereon.

CF 81. Per its tariff, COSCO was to undertake reconciliation of disputes within 30 days; COSCO Rules Tariff CX00455-CX00456.

RESPONSE: Admitted.

CF 82. No specific guidance as to how COSCO was to address disputes is provided in COSCO's tariff. CF80.

RESPONSE: Denied.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.") . Access stands by its proposed fact and evidence thereon.

CF 83. Out of 379 invoices, COSCO took over two years to respond to the dispute by cancelling charges for 121 invoices totaling \$197,720.00, see CF66.

RESPONSE: Denied. In fact, COSCO responded to Access One president Nobu Suzuki's

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first request for cancelation of per diem charges, sent February 9, 2022, that same day. RPFF 23-24. The next day, February 10, 2022, COSCO's LA/LB Deputy General Manager, Phillip Taylor, emailed Mr. Suzuki, "LBCT is open for empty single returns. Additional appointments were released today, and there will be no issue securing empty return appointments during Friday night, or Saturday/Sunday day shifts. *Please plan to take advantage of the weekend offering.*" RPFF 47. Not only did AOT fail to respond to Mr. Taylor, but AOT also has introduced no evidence that it took advantage of weekend appointments, as Mr. Taylor suggested. RPFF 48, 62.

Following this February 9-10 email exchange, AOT did not subsequently contact Mr. Taylor or COSCO representatives directly. Instead, AOT submitted eleven (11) help desk tickets with COSCO's Equipment Control Department between February 11 and April 5, 2022, despite COSCO's March 25 email explaining that "the Equipment Control Department does not have the authority to waive per diem, Exempt, and cannot Stop the Per Diem Clock for issues by the Terminal's appointment system." RPFF 48-61.

Access Reply: First, as to all cancelled invoices, regardless of how Access confirmed the lack of empty return locations and appointments is not necessarily controlling since COSCO has now admitted for all cancelled invoices and their related billed dates, Access "was able to demonstrate container return appointment unavailability" see COSCO Response to CF 68. Thus, any argument as to the dates corresponding to the billed dates on the cancelled invoices should be disregarded.

COSCO does not address the fundamental part of this fact where Access contends it did not cancel charges for 121 invoices totaling \$197,720.00 until May 2024, which is admitted, see COSCO response to CF37. The email exchange referenced did not cover the 121 invoices with multiple containers as alleged in the fact but only concerned 47 containers. Access admits Mr.

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Taylor did send an email to Access, but it was illusory at best. The Dec. of Thompson indicates Access consulted the COSCO terminal broadcast and attempted to obtain appointments on at least a daily basis, See Dec. of Thompson, ¶¶ 7-9, CX01447, Supplemental Dec. of Thompson, ¶¶2-4, CX 01478-CX01480; Dec. of Suzuki, ¶15, CX01443 (“Access had dedicated employees who were responsible to attempt to secure appointments throughout the day”). COSCO’s suggestion in the email referenced in RPFF47 was for one specific weekend, February 12-13, 2022 (CX01397) not a continuing notice that illusory appointments were available on weekends, which Access already sought out on a routine basis. On the date the email was sent, February 10, 2022, COSCO admits, Access found no appointments were available see RPFF 48. See also CX01396. Nevertheless, Access, per its ordinary procedure continued to seek appointments on a daily basis and was able to return 17 containers on weekend days February 13, 2022, February 19-20, 2022 and February 26, 2022, see Access Claim Summary CX1430-CX1435, column N. COSCO provides no evidence whatsoever that appointments were available for the return of COSCO’s empties on any weekend date on which Access had possession of empty containers. Instead, COSCO, by its actions, has admitted that locations and appointments were not available for the return of empties regardless of the day of the week, CF41, 43, 44 and 69. Further COSCO admits disputes should be directed to Shanghai (CF57) yet now argues somehow Access should have contacted Mr. Taylor here in the USA. COSCO has not evidence to support that statement and also fails to establish it would have been material to contact Mr. Taylor further as he provided no solution to Access issues.

CF 84. For 61 invoices totaling \$45,995.00 COSCO as yet to cancel such charges and issue a refund notwithstanding that some charges were incurred on 80 dates which COSCO has cancelled other charges; Dec. of Ogawa ¶21 CX01454-CX01455, Access Claim Summary CX01430-01435

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and Access Terminal Availability Summary CX01436-CX01439, columns A, C-E.

RESPONSE: Admitted that COSCO has cancelled or waived the large majority of detention charges assessed to AOT. Otherwise denied.

Access Reply; COSCO does not respond to the proposed fact in its entirety. As to its “otherwise denied” designation, since COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). COSCO’s denial should be disregarded.

CF 85. COSCO has not identified or provided any mechanism to ensure that the terminals it designates for empty returns actually has space or available appointments see CF10, 25, 35, 57, 59, 77.

RESPONSE: Denied. As acknowledged by Complainant in CPFF 20 [sic], COSCO and eModal provide daily communications regarding terminal operations and appointments. COSCO daily conveys empty return location instructions to drayage truckers.

Access Reply. COSCO admits the eModal screen shots do not have appointment information but rather only state that appointments are on a first come first serve basis RPFF30. Further COSCO does not directly respond to this fact. The fact assumes that COSCO has designated a terminal, as indicated in its response, but COSCO fails to deny that it takes any steps to insure that appointments are actually available at the terminal it designates. Access has provided sufficient evidence to support its proposed fact.

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CF 86. In addition to and as part of its unjust practices re detention billing, COSCO threatened to shut out Access on at last [sic] two occasions, did shut out Access on one occasion, knowing full well the invoices remained in dispute and that the disputes were valid. CF 30, 60, 62.

RESPONSE: Denied. See Replies to CF30, CF60, CF62.

Access Reply: See Access Replies to CF 30, 60, 62 incorporated herein.

CF 87. Without regard to the validity of any invoice, COSCO reserves the right in its tariff to shut out motor carriers if any invoice remains unpaid; COSCO Rules Tariff, CX00455-CX00456.

RESPONSE: Denied to the extent that Complainant suggests that COSCO's invoices are invalid. Admitted that COSCO's tariff and UIIA Addendum include reservations of COSCO's legal rights.

Access Reply; COSCO admits for all cancelled invoices and their related dates, Access "was able to demonstrate container return appointment unavailability" see COSCO Response to CF 68. Thus, A fortiori, COSCO's cancelled invoices were invalid in the first instance. As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.") . COSCO also argues in its Opposition Brief, that not only did it not determine the validity of any invoices before it was sent to Access, without any legal support COSCO it has no obligation to do so! See COSCO Opposition Brief, pp. 17-19.

CF 88. Access had no ability to "flip," i.e. remove, the empty container off of the chassis when it

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was required to store the container and chassis; Dec. of Suzuki, ¶17 CX01443-01444.

RESPONSE: Respondent lacks sufficient information regarding Complainant's internal operations to admit or deny. Respondent further lacks information as to whether AOT may have been able to take other remedial measures, such as "flipped" an empty container off of one chassis and on to another at another facility such as the chassis provider, etc.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.") . Access stands by its proposed fact and evidence thereon.

CF 89. Until the empty container was returned, not only was Access forced to be responsible to store COSCO's empty container, Access was also unable to use the chassis associated with that container, Dec. of Suzuki, ¶17 CX01443-01444.

RESPONSE: Denied that Access was unable to use the chassis associated with that container. See Reply to CF88. Further denied to the extent that AOT delayed returning the empty container and thus was responsible for storage and other costs.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.") . Access stands by its proposed

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fact and evidence thereon. See also reply to CF 88. COSCO's response also contradicts other admissions. COSCO has admitted Access incurred storage and chassis charges (COSCO response to CF 48) and Access "was able to demonstrate container return appointment unavailability" see COSCO Response to CF 68.

CF 90. COSCO's inability to accept empty containers in a timely fashion, required Access to store COSCO's containers on chassis without compensation; Dec. of Suzuki, ¶17 CX01443-01444.

RESPONSE: Denied. The problem is not that COSCO was unable to accept empty containers in a timely fashion; the problem is that AOT was not proactive in seeking these competitive appointments, as evidenced by its refusal to work on weekends. Access One was thus responsible for any additional costs it may have incurred.

Access Reply; COSCO's response contradicts other admissions. COSCO has admitted Access incurred storage and chassis charges (COSCO response to CF 48) and Access "was able to demonstrate container return appointment unavailability" see COSCO Response to CF 68.

As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). COSCO has failed to produce any evidence that appointments were available on weekends. In response to the one email that COSCO points to repeatedly (RPFF 47) COSCO admits any illusory weekend appointment was immediately contradicted by Mr. Suzuki, see RPFF 48. The Dec. of Thompson indicates Access consulted the COSCO terminal broadcast and attempted to obtain appointments on at least a daily basis, See

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Dec. of Thompson, ¶¶ 7-9, CX01447, Supplemental Dec. of Thompson, ¶¶2-4, CX 01478-CX01480; Dec. of Suzuki, ¶15, CX01443 (“Access had dedicated employees who were responsible to attempt to secure appointments throughout the day”). COSCO’s suggestion in the email referenced in RPF47 was for one specific weekend, February 12-13, 2022 (CX01397) not a continuing notice that illusory appointments were available on weekends, which Access already sought out on a routine basis. On the date the email was sent, Thursday February 10, 2022, COSCO admits Access found no appointments were available see RPF 48. See also CX01396. Nevertheless, Access, per its ordinary procedure continued to seek appointments on a daily basis and was able to return 17 containers on weekend days February 13, 2022, February 19-20, 2022 and February 26, 2022, see Access Claim Summary CX1430-CX1435, column N. COSCO provides no evidence whatsoever that appointments were available for the return of COSCO’s empties on any weekend date on which Access had possession of empty containers. Instead, COSCO, by its actions, has admitted that locations and appointments were not available for the return of empties regardless of the day of the week, CF 41, 43, 44 and 69.

CF 91. Valuable yard space and the inability to use the chassis, a shortage of which was occurring during the Relevant Time Period, were experienced by Access; Dec. of Suzuki, ¶17 CX01443-01444.

RESPONSE: COSCO lacks sufficient information to admit or deny the value of Access One’s yard space, its ability to use a chassis, or whether there was a shortage of chassis during the Relevant Time Period or the causes for any alleged chassis shortage.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3

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which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). Access has provided sufficient evidence to support this fact.

CF 92. Access billed COSCO for the involuntary storage and chassis use at the commercially acceptable rates of \$45.00 for container storage and \$40.00 for chassis per day for use on dates where Access was unable to return the empty containers; Dec. of Suzuki, ¶18, CX014444; Dec. of Ogawa, ¶16 CX01453-CX01454; Access Invoices to COSCO, CX00713-CX01091; Access Claim Summary CX01430-01435 columns AC and AD.

RESPONSE: Denied that the arbitrary rates asserted by Complainant are “commercially acceptable.” Further denied that these “bill[s]” issued by AOT are legitimate.

Access Reply; COSCO admits Access incurred these charges, see COSCO response to CF 48. As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). Whether COSCO considers these invoices “legitimate” or not, COSCO does not deny they summarize the storage and chassis per diem asserted by Access which Access seeks reparations thereon. The amounts charged by Access for container storage and chassis combined are less than detention charged by COSCO on the container alone, see CX00572-CX00712.

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CF 93. Under normal circumstances, Access would have been able to return the empty container directly from the consignee's place of business for the usual drayage charge assessed to COSCO or the consignee, Dec. of Suzuki, ¶11, CX01443.

RESPONSE: Denied that any of the drayage charges for the shipments in question were assessed to COSCO. Further denied because this counterfactual is neither remotely probative nor relevant.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). Also, Access' submitted evidence shows the vast majority of the containers in dispute were for Tireco where Access was engaged by COSCO and billed COSCO for its drayage services, not Tireco. This fact is clearly relevant since Access was damaged by providing additional services without compensation from COSCO as a result of COSCO's Act violations and COSCO admits Access incurred these costs, see COSCO response to CF 48..

CF 94. Because of the ongoing difficulties in obtaining empty terminal locations, Access would stop off the empty container at its yard and then arrange for re-delivery once terminal appointments became available instead of taking the empty directly from consignee's premises directly back to the COSCO designated terminal. As a result, Access was required to impose a stop over and re-delivery fee; Dec. of Suzuki, ¶11 CX01443.

RESPONSE: Respondent lacks sufficient information to admit or deny Access One's normal

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internal operations or whether any “stop off” or “redelivery” was additional or routine. Otherwise denied.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”) . Additionally, COSCO admits Access incurred these costs, see COSCO response to CF 48.

CF 95. Access charged a “stop over” fee for this service in the amount of \$125.00 per container; Dec. of Suzuki, ¶11, 18 CX01443-CX01444; Access Invoices to COSCO, CX00713-CX0109; Access Claim Summary CX01430-01435, column AE.

RESPONSE: Respondent lacks sufficient information to admit or deny Access One’s normal internal operations as to whether any “stop over” fee was routine or additional, or the amount thereof. Denied that Access One has produced any evidence to support that it has paid such “stop over” fees. Further denied that COSCO ever required or requested any stop over from Access One or agreed to pay such a fee. Further denied that the UIIA authorizes or condones such charges from a drayage provider to an ocean carrier. Further denied that any such fee is related to or caused by any alleged violation of the Shipping Act.

Access Reply; COSCO admits the stop over charge was incurred by Access, see COSCO response to CF 48. Generally, since COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be

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followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). Access does not state it “paid” these fees but rather were forced to provide these services without compensation from COSCO. COSCO does not deny in the ordinary course Access would have paid its drivers for any haul in compliance with state and federal law. The charges claimed are based upon the reasonable value of those services which COSCO admits Access incurred.

CF 96. When space/appointments became available, Access would also have to undertake the final delivery to the port for the stop over empty containers which would incur a “re-delivery” fee of \$80.00 per container. Dec. of Suzuki, ¶11, 18 CX01443-CX01444; Access Invoices to COSCO, CX00713-CX01091; Access Claim Summary, CX01430-01435, column AF.

RESPONSE: Respondent lacks sufficient information regarding Complainant’s internal operations to admit or deny. Respondent also lacks information as to whether any alleged “redelivery” fees was routine or additional or associated with any of the invoices that are the subject of its Complaint. Denied that Access One has produced any evidence showing that it had paid any alleged “re-delivery” fees.

Access Reply; COSCO admits the stop over charge was incurred by Access, see COSCO response to CF 48. Generally, since COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). Further COSCO misconstrues Access’ fact. Access does not state it “paid” these fees but rather were forced to

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incur these services without compensation from COSCO. COSCO does not deny in the ordinary course Access would have paid its drivers for any haul in compliance with state and federal law. The charges claimed are based upon the reasonable value of those services which COSCO admits Access incurred.

CF 97. If COSCO is not required to pay the storage, chassis, stop over and redelivery fees, COSCO would then experience a windfall in that it did not take any measure or expense to ensure its obligated adequate space and facilities to accept empty containers, and instead involuntarily required Access to bear the related expenses for storage, chassis use and additional stop over and re-delivery services, Dec. of Suzuki ¶19 CX014444.

RESPONSE: Denied. This is definitionally untrue because COSCO in no way benefitted from the failure of Access One to timely return its equipment such that COSCO “experience[d] a windfall.” To the contrary, COSCO incurred additional lost opportunity costs due to Access One’s untimely return of its equipment.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). COSCO has provided no evidence that it had any lost opportunity and even so any lost opportunity would be because it did not meet its obligation to have adequate facilities for its operations (see response to CF 115). Instead of having to find alternative locations for the return of empty locations, which would be an additional cost to COSCO, or forcing terminals to accept empties which could have resulted

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in additional charges as well, COSCO required Access to store its empty containers without compensation.

CF 98. Access has incurred damages in the amounts as follows:

Storage charges of \$115,975.00

Chassis charges \$103,080.00

Stop over charges \$30,750.00

Re-delivery charges \$19,680.00 see CF47-52; CF88-97.

RESPONSE: Denied that Access One has introduced evidence that it has incurred these charges.

Access Reply; COSCO has admitted Access incurred these charges, see COSCO response to CF 48. Since COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). COSCO misconstrues the basis of the reparations. These were services provided by Access without compensation. Access has provided sufficient information to support this fact.

CF 99. In addition to the above costs incurred by Access, COSCO had collected \$45,995.00 in detention charges on invalid invoices; CF 39, 84.

RESPONSE: Denied that any charges imposed by COSCO were invalid.

Access Reply; COSCO does not deny it collected \$45,995.00 As COSCO has not provided any

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contrary evidence to the fact payment was for invalid invoices, thus the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.")). Access stands by its proposed fact and evidence thereon.

CF 100. Access has demonstrated that the detention charges were invalid due to lack of designated terminals for empty returns or lack of appointments; CF39, 84.

RESPONSE: Denied. Not only has Complainant failed to demonstrate that the detention charges assessed by COSCO were invalid, but Complainant has also failed to demonstrate that there was a true "lack of appointments" including on weekends.

Access Reply; First, as to all cancelled invoices and their associated dates, COSCO admits Access "was able to demonstrate container return appointment unavailability" see COSCO Response to CF 68. Additionally, since COSCO has not provided any contrary evidence, the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.")). Notwithstanding the evidence thereon,

COSCO also continues to ignore testimony and documentary evidence by Access that they attempted to obtain appointments on a "daily basis". Perhaps on COSCO's calendar, weekends are omitted from the notion of "daily basis". The Dec. of Thompson indicates Access consulted

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the COSCO terminal broadcast and attempted to obtain appointments on at least a daily basis. See Dec. of Thompson, ¶¶ 7-9, CX01447, Supplemental Dec. of Thompson, ¶¶2-4, CX 01478-CX01480; Dec. of Suzuki, ¶15, CX01443 (“Access had dedicated employees who were responsible to attempt to secure appointments throughout the day”). COSCO’s suggestion to seek appointments in the email referenced in RPF47 was for one specific weekend, February 12-13, 2022 (CX01397) not a continuing notice that illusory appointments were available on weekends, which Access already sought out on a routine basis. On the date the email was sent, Thursday February 10, 2022, COSCO admits, Access found no appointments were available see RPF 48. See also CX01396. Nevertheless, Access, per its ordinary procedure continued to seek appointments on a daily basis and was able to return 17 containers on weekend days February 13, 2022, February 19-20, 2022 and February 26, 2022, see Access Claim Summary CX1430-CX1435, column N. COSCO provides no evidence whatsoever that appointments were available for the return of COSCO’s empties on any weekend date on which Access had possession of empty containers. Instead, COSCO, by its actions, and admissions herein, has admitted that locations and appointments were not available for the return of empties regardless of the day of the week, CF 41, 43, 44 and 69 and COSCO’s response to CF 68.

CF 101. The total invalid detention charges of \$45,995.00 should be refunded by COSCO to Access, CF39, 84.

RESPONSE: Denied. This is clearly a legal argument in the guise of a purported “fact.”

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed

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by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). Further “[t]o the extent that individual findings of fact may be deemed conclusions of law, they shall also be considered conclusions of law. Similarly, to the extent individual conclusions of law may be deemed findings of fact, they shall also be considered findings of fact. Hapag-Lloyd A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c), FMC Dkt. 21-09 (I.D. April 22, 2022) at page 4.

CF 102. When a dual move is required to return an empty container, it is precluding any motor carrier from returning an empty container unless it has a corresponding full container to pick up, CF11, 35, 55.

RESPONSE: Admitted that dual moves – which are imposed by the terminals, not carriers – require drayage providers to pick up a full container when returning an empty one. Otherwise denied.

Access Reply: COSCO admits the of the fact. As to the “otherwise denied” as COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”) Access stands by its proposed fact and evidence thereon.

CF 103. Dual moves restrictions give preference to any motor carrier which have the ability to pick up a full container at the same time as returning an empty at that particular terminal; CF11,

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35, and 55.

RESPONSE: Denied because Access One has not demonstrated that it never had the ability to pick up a full container at the same time as it returned an empty as required by the marine terminal to manage gate fluidity. Further denied that dual moves give preference to any motor carrier or other third-party entity. Also denied that COSCO is responsible for the ramifications of dual move requirements.

Access Reply: As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). Access provided sufficient supporting evidence thereon. Additionally, COSCO contradicts itself as it has also indicated it had no information as to the ability of Access to use dual transactions. See response to CF27.

CF 104. Access has been charged detention when it was unable to return empty containers if it did not have a corresponding dual move, CF 11, 35 and 55.

RESPONSE: Admitted that COSCO charged AOT detention for containers that AOT retained past the expiration of free time, no matter the reason. Noted that COSCO has since waived or refunded the vast majority of those charges.

Access Reply: In a convoluted manner, COSCO admits this fact. COSCO has not provided any contrary evidence as to why any detention charge was refunded. Access admits that COSCO did cancel detention charges. The cancellation does not excuse the wrongful issuance of the detention charge in the first instance which has not been rebutted.

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CF 105. COSCO has confirmed its detention policies are found in its tariff for both Merchant and Carrier Haulage, CF 36, 80 and 82.

RESPONSE: Admitted.

CF 106. COSCO does not provide for a detention exception in its tariff if a dual move cannot be used to return an empty container; COSCO's Rules Tariff CX00451-CX00454; CF36, 80 and 82.

RESPONSE: Admitted.

CF 107. COSCO charges detention even if a dual move is not available to the motor carrier. See Access Terminal Availability Summary CX01436-CX01439 and Access Claim Summary CX01430-CX01435.

RESPONSE: Admitted. COSCO has no way of knowing when or if a particular motor carrier can or cannot comply with a dual move requirement imposed by a terminal.

Access reply: COSCO has admitted the fact. Additional qualification, without evidentiary support should be disregarded.

CF 108. On at least 15 dates, certain COSCO's terminals designated only dual moves (and a subset of dual on POP) would be required to return empty containers. COSCO routinely charged Access for detention on these dates; Access Terminal Availability Summary CX01436-CX01439 and Access Claim Summary CX01430-01435.

RESPONSE: COSCO lacks information sufficient to respond to the unexplained parenthetical ("and a subset of dual on POP"). Denied because COSCO does not own or control the terminals in question and thus they are not "COSCO's terminals." Denied that

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issuing an invoice to Access One after it had returned an empty container on a mere 15 dates consists of a “routine.” Otherwise denied.

Access Reply; It is curious that COSCO would have insufficient information in the eModal designations that it uses to alert motor carriers to the designated empty container return locations. “dual on POP” is a subset of dual moves where the motor carrier, in addition to having a dual transaction must also have the ability to provide containers on a “Pool of Pool” chassis. <https://pop-lalb.com/> . As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”) . Access has provided sufficient evidence thereon. Additionally COSCO has admitted it is responsible for having adequate facilities for its operations, see response to CF 115.

CF 109.Access, at minimum, is acting on behalf of a “shipper”; CF 3-8.

RESPONSE: Denied.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”) . Access has provided sufficient evidence thereon. Further COSCO has characterized Access as acting as an agent of the consignee which is included in the definition of “shipper”. See COSCO’s response to CF 110.

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CF110. Access, picks up full containers and returns empties on behalf of its and COSCO customers, which are “shippers” as to COSCO, CF3-8.

RESPONSE: Admitted only to the extent that consignees may be characterized as “shippers” and therefore COSCO’s “customers.” Otherwise, denied.

Access Reply: COSCO admits the fact. As COSCO has not provided any contrary evidence or explanation as to the “otherwise denied”. As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”)

CF 111. Dual moves are by their very nature unjust and unfair, because COSCO is unfairly penalizing Access for patronizing another carrier or its designated terminal. COSCO and its terminals, by refusing to accept the return of empty containers unless there is a corresponding full container pick up at that terminal, is in effect unjustly and unfairly discriminating for the lack of additional shipments by COSCO or through COSCO’s terminal; CF10, 11, 27, 35, 54, 55, 59, 102, 103, ,104, 106, 107, 108.

RESPONSE: Denied that AOT “patronized” COSCO. Instead, AOT contracts for services with third-party entities that patronize COSCO as shippers and consignees. Denied to the extent that Complainant implies that COSCO owns or operates terminals. Otherwise, CPFF111 is denied as a conclusion of law.

Access Reply: As COSCO has not provided any contrary evidence the fact should be deemed

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admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact."). Access has provided sufficient evidence thereon including evidence that Access was a 'house trucker' for COSCO for all Tireco moves that are part of this claim. Thus "patronizing" another carrier is an apt description of Access' circumstances.

CF 112. If a full container pick up was available at another terminal on behalf of another carrier, Access would have to forgo returning the empty container, CF102; Dec. of Suzuki, ¶14 CX01443.

RESPONSE: COSCO lacks sufficient information regarding Complainant's internal operations to admit or deny.

Access Reply; As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.") Access stands by its proposed fact and evidence thereon.

CF 113. To the extent the Presiding Officer has awarded reparations for COSCO's violations of §41102(c), additional reparations for violation of §§41104(a)(3) and (8) would be duplicative and instead Access seeks nominal damages in the amount of \$1.00; CF98, 99.

RESPONSE: CF113 is a legal argument and as such COSCO denies it.

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Access Reply: As COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which requires "Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.") Access stands by its proposed fact and evidence thereon. Further "[t]o the extent that individual findings of fact may be deemed conclusions of law, they shall also be considered conclusions of law. Similarly, to the extent individual conclusions of law may be deemed findings of fact, they shall also be considered findings of fact. Hapag-Lloyd A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c), FMC Dkt. 21-09 (I.D. April 22, 2022) at page 4.

CF 114. The return of COSCO's empty containers to a terminal or location designated by COSCO is integral to the receiving, handling, storing and delivering property, 46 C.F.R. §565.5(c)(ii).

RESPONSE: Denied that the "designation" of a return location is "receiving, handling, story [sic] and delivering property." Admitted to the extent that the return of empty containers from a consignee to a return location is done by drayage providers. Admitted to the extent that ocean common carriers require containers to move their customers' cargo. The return of empty containers from a consignee of cargo to the ocean carrier may be done by different parties and subject to many different contractual relationships, not all of which are governed by the Shipping Act. Otherwise, admitted.

Access Reply: The gravamen of the proposed fact has been admitted, As COSCO has not provided any contrary evidence for their qualification of the admission the fact should be deemed admitted (see, the Presiding Officer's Scheduling Order herein served July 3, 2024, at page 3 which

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requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”) COSCO also admits it is required to provide adequate terminal facilities for the return of empty containers, see COSCO response to CF 115. Access has provided sufficient evidence for this fact. Access also submits the fact contains an obvious wordsmithing error as the citation was to be 46 C.F.R §545.5(c)(ii) not 565.5(c)(ii).

CF 115. An ocean carrier such as COSCO is responsible for having adequate terminal facilities for its operations, including empty returns, see 85 FR 29638, 29650 (2020).

RESPONSE: Admitted to the extent that ocean carriers are responsible for “provid[ing] adequate terminal facilities,” which COSCO accomplishes by contracting for the facilities of a terminal operator. Otherwise denied.

Access Reply; COSCO admits the fact. As to COSCO’s further qualification, it is without legal basis and as COSCO has not provided any contrary evidence the fact should be deemed admitted (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”). Also, COSCO’s position that it is not responsible for its terminal’s action has already found to be lacking, see generally Hapag-Lloyd A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(c), FMC Dkt. 21-09 (I.D. April 22, 2022).

CF 116. Access filed its complaint, which was answered, prior to July 2024, thus the three year

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requirement of §42301(a) is satisfied. As a result, Access is entitled to seek reparations for injuries caused by COSCO's conduct, Answer to Complaint, CX00001-CX00022.

RESPONSE: Admitted that Access One filed its complaint prior to July 2024 and therefore those alleged claims that accrued between September 2021 and October 2022 are within the limitations period of the Shipping Act. To the extent CF116 alleges Access One is entitled to reparations, has actual injuries, or that those alleged injuries were caused by a violation of the Shipping Act, denied.

Access Reply: The gravamen of the proposed fact has been admitted.

Date: January 31, 2025

Respectfully submitted,



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CERTIFICATE OF SERVICE

I hereby certify that on January 31, 2025, the foregoing COMPLAINANT'S REPLY TO RESPONDENT'S RESPONSES TO ACCESS ONE TRANSPORT INC.'S PROPOSED FINDINGS OF FACT has been served upon all interested persons and parties by electronic means pursuant to the below list.

On today's date, a further hard copy has also been sent to the Presiding Administrative Law Judge at the below address via courier for next business day delivery and a hard copy has been sent via courier to counsel for respondent at the below address for next business day delivery. In addition, a word version of this document has been sent via email to the office of the Administrative Law Judges and Respondent's counsel.

Stephen M. Uthoff

Stephen M. Uthoff

Counsel for Respondent COSCO

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Presiding Administrative Law Judge

Erin M. Wirth, Chief Administrative Law Judge

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